

Court No. - 39

Case :- WRIT - C No. - 5436 of 2021

Petitioner :- Krishna Kumar Srivastava

Respondent :- Managing Director Purvanchal Vidyut Vitaran Nigam And 3 Others

Counsel for Petitioner :- Ramesh Chandra Gupta 2

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Deepak Verma,J.

Heard learned counsel for petitioner, learned Standing Counsel for the State and perused the record.

This writ petition has been filed by the petitioner seeking quashment of the impugned provisional assessment bill dated 23.10.2020 and final assessment bill dated 30.12.2020 and demand notice dated 30.12.2020 issued by respondent no.3- Executive Engineer Vidyut Vitaran Khand-1st, Fatehpur and further prayer is to issue a direction to the respondent not to take any coercive action against the petitioner on the basis of the final assessment bill dated 30.12.2020 and demand notice dated 30.12.2020 issued by respondent no.3, District Fatehpur.

Petitioner is challenging the assessment made under Clause 8.1 read with 8.2 of the U.P. Electricity Supply Code, 2005. The assertion is that the provisional assessment bill along with the show cause notice as required under Clause 8.1(b)(iii) has not been given to the petitioner. The opportunity of hearing before imposition of liability for the alleged theft of electricity while dealing with the compounding application moved by the petitioner under Section 152 has not been given to him.

Thus, according to the petitioner, the assessment order dated 30.12.2020 for compounding of the criminal liability/offence allegedly committed by the petitioner is not in accordance with

the aforesaid procedure prescribed under the U.P. Electricity Supply Code, 2005.

Sri Narendra Kumar Tiwari, learned Advocate has put in appearance on behalf of the respondents.

In view of the contention in the writ petition, without entering into the merits of the claim of the petitioner, the present petition is being disposed of with liberty to the petitioner to make a fresh representation before the respondent no.3, i.e., Executive Engineer, Vidyut Vitran Khand-1st, Fatehpur raising all his grievances against the provisional assessment bill dated 23.10.2020, final assessment bill dated 30.12.2020 and the demand raised towards compounding charges and assessment as per Clause 8.2(vii) of the U.P. Electricity Supply Code, 2005.

In case the petitioner approaches respondent no.3, Executive Engineer, Vidyut Vitran Khand-1st, Fatehpur, along with a copy of this order within three weeks from today, a reasoned and speaking order, in accordance with law, shall be passed by respondent no.3, considering the mandate of Clause 8.1(iii) and 8.2(vii) of the U.P. Electricity Supply Code, 2005, within a further period of four weeks.

The petition is accordingly, **disposed off.**

Order Date :- 22.2.2021
Nitin Verma